

2:00 PM LINE 3

25-CIV-06841

ESTATE OF HUNTER BERGNER, ET AL VS. SAN MATEO COUNTY, ET AL

ESTATE OF HUNTER BERGNER
SAN MATEO COUNTY

DENISSE O. GASTELUM
ADAM M. STODDARD

DEMURRER TO PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendants County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher's Demurrer to Plaintiffs' Complaint is **SUSTAINED WITH LEAVE TO AMEND**.

The requests for judicial notice are GRANTED to the extent they seek judicial notice of the existence and contents of court records and official records, but not the truth of disputed factual matters contained therein.

As a preliminary matter, Plaintiffs' opposition contains 17 pages of argument and therefore exceeds the 15-page limit imposed by California Rules of Court, rule 3.1113(d). An oversized memorandum is treated in the same manner as a late-filed paper. (Cal. Rules of Court, rule 3.1113(g).) In the exercise of its discretion, the Court has not considered argument appearing beyond the applicable page limit. The parties are directed to comply with the applicable page limitations in future filings.

In this action, Plaintiffs Estate of Hunter Bergner (the "Estate"), Patricia Colet, L.B.1, L.B.2, and S.B. (collectively, "Plaintiffs") seek damages arising from the March 15, 2024, death of Hunter Bergner ("Decedent") by suicide while incarcerated at Maguire Correctional Facility. The Complaint alleges that Defendant County of San Mateo (the "County") and its employees are liable for their respective roles in failing to prevent Decedent from taking his own life.

The County and Defendants Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher (collectively, "Defendants") demur generally and specially for uncertainty to the Complaint and its four causes of action asserted against them.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the factual allegations of the operative pleading. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) In determining whether a complaint states a cause of action, the Court accepts properly pleaded material facts as true, together with facts that reasonably may be inferred from those allegations, but does not accept contentions, deductions, or conclusions of fact or law. (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The pleading is read as a whole and liberally construed. (Code Civ. Proc., § 452; *Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.)

A special demurrer for uncertainty lies where a pleading is uncertain, ambiguous, or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) California Rules of Court, rule 2.112 requires each separately stated cause of action to identify its nature, the party asserting it where there are multiple plaintiffs, and the party or parties against whom it is asserted. Failure to comply with those requirements may render a pleading subject to a special demurrer for uncertainty. (*Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014.)

GOVERNMENT CODE SECTION 945.6 DOES NOT ESTABLISH THAT THE ENTIRE COMPLAINT IS TIME-BARRED

Defendants first contend that the entire Complaint is barred because Plaintiffs' government claims were rejected on October 23, 2024, but this action was not filed until September 9, 2025.

Government Code section 945.6, subdivision (a)(1), however, does not measure the six-month period from the date appearing on the rejection. The statute requires an action to be commenced no later than six months after the written rejection notice is "personally delivered or deposited in the mail." (Gov. Code, § 945.6, subd. (a)(1); see Gov. Code, § 913, subd. (b).)

The Complaint alleges that the claims were rejected on October 23, 2024, but does not establish when written notice of rejection was personally delivered or deposited in the mail. Accordingly, the face of the Complaint does not establish that the six-month period under Government Code section 945.6 expired before this action was filed. The demurrer to the entire Complaint on that ground is therefore **OVERRULED**.

FIRST CAUSE OF ACTION — NEGLIGENCE

The First Cause of Action for negligence is purportedly asserted by all Plaintiffs against all Defendants. The pleading, however, combines a survival claim belonging to the Estate with wrongful-death claims belonging to Decedent's heirs.

Survival and wrongful-death claims are legally distinct. A survival action continues a cause of action belonging to the decedent and is prosecuted by the decedent's personal representative or successor in interest, whereas a wrongful-death action is an independent cause of action belonging to the statutorily specified heirs for injuries they personally sustain as a result of the death. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1264, 1278, 1281.)

Plaintiffs' opposition acknowledges that the Estate intends to pursue survival damages while the remaining Plaintiffs intend to pursue wrongful-death damages. That clarification, however, is not adequately reflected in the Complaint itself. Because the claims belong to different Plaintiffs, are asserted in different capacities, and seek compensation for different injuries, they should be separately and clearly pleaded in conformity with California Rules of Court, rule 2.112.

Accordingly, the special demurrer for uncertainty to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

The Court does not otherwise agree that the negligence theory against Defendant Kim Martinez necessarily falls outside the government claims presented. The submitted claim materials refer to alleged acts and omissions of custodial personnel concerning Decedent's medical needs, including an alleged failure to summon or transport Decedent for necessary medical care. The claim presentation requirement does not

require the claimant to plead each factual detail or legal theory ultimately alleged in the complaint, so long as the claim fairly apprises the public entity of the factual basis for the litigation. (See *Nelson v. State of California* (1982) 139 Cal.App.3d 72, 79; *Donohue v. State of California* (1986) 178 Cal.App.3d 795, 804, quoting *Elias v. San Bernardino County Flood Control Dist.* (1977) 68 Cal.App.3d 70, 74.)

Nor does the County's general immunity from direct common-law tort liability necessarily dispose of the negligence claim as pleaded. Plaintiffs expressly rely upon Government Code section 815.2, subdivision (a), which provides for public-entity liability for injury proximately caused by an employee acting within the scope of employment where the employee's conduct would otherwise give rise to liability. Any applicable statutory immunity may be addressed in relation to the particular acts and defendants alleged in the amended pleading.

SECOND CAUSE OF ACTION — PROFESSIONAL NEGLIGENCE

The Second Cause of Action for professional negligence is asserted by the Estate against Defendants Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher, each of whom is alleged to have provided medical services to Decedent.

Code of Civil Procedure section 340.5 provides that an action for injury or death against a health care provider based upon professional negligence must be commenced within three years after the date of injury or one year after the plaintiff discovers, or through reasonable diligence should have discovered, the injury, whichever occurs first. Where a complaint appears on its face to be barred by the applicable statute of limitations, the plaintiff must plead facts establishing delayed discovery, tolling, or another basis for avoiding the apparent bar. (*County of Alameda v. Superior Court* (1987) 195 Cal.App.3d 1283, 1286.)

Here, the Estate asserts a survival claim based on alleged professional negligence occurring before Decedent's death on March 15, 2024. This action was filed on September 9, 2025, more than one year later. Unlike the heirs' independent wrongful-death claims, the Estate's survival claim continues the cause of action that belonged to Decedent. (See *Quiroz v. Seventh Ave. Center*, supra, 140 Cal.App.4th at p. 1264.) The rule applicable to accrual of an heir's wrongful-death action under *Larcher v. Wanless* (1976) 18 Cal.3d 646 does not convert the Estate's survival claim into a new cause of action accruing in the heirs.

Plaintiffs argue in opposition that the alleged professional negligence was not discovered until June 2025 and also rely upon tolling arising from prior federal litigation. Those matters, however, are not adequately alleged in the Complaint. An opposition cannot substitute for allegations necessary to plead around an apparent statute-of-limitations bar.

Accordingly, the demurrer to the Second Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**. Plaintiffs may amend to allege, if they can do so consistently with their obligations under Code of Civil Procedure section 128.7, facts establishing delayed discovery, statutory tolling, or another basis for avoiding the limitations bar.

THIRD CAUSE OF ACTION — GOVERNMENT CODE SECTION 845.6

The Third Cause of Action is asserted by the Estate against all Defendants under Government Code section 845.6.

Section 845.6 creates a narrow exception to governmental immunity. A public employee, and the employing public entity when the employee acts within the scope of employment, may be liable where the employee knows or has reason to know that a prisoner requires immediate medical care and fails to take reasonable action to summon such care. (Gov. Code, § 845.6.) The statute imposes a duty to summon immediate medical care; it does not create liability for negligent diagnosis, inadequate treatment, failure to monitor, or deficient follow-up after medical care has been summoned. (*Castaneda v. Department of Corrections & Rehabilitation* (2013) 212 Cal.App.4th 1051, 1070–1074; *Watson v. State of California* (1993) 21 Cal.App.4th 836, 841–843.)

The Complaint does not distinguish these materially different theories with sufficient clarity. Some allegations suggest that medical personnel examined or assessed Decedent but failed to diagnose, treat, monitor, or respond appropriately. Those allegations concern the adequacy of medical care after medical personnel were involved and do not, without more, establish a failure to summon care under section 845.6. Other allegations appear to assert that Defendant Kim Martinez knew Decedent was suicidal but failed to summon necessary medical assistance.

The cause of action nevertheless pleads these theories collectively against all Defendants without adequately identifying which Defendant allegedly knew of what immediate medical need, when that knowledge arose, and what reasonable action to summon care that Defendant failed to take. These distinctions are material both to the elements of section 845.6 and to the potentially applicable immunities under Government Code sections 855.8 and 856.

Government Code section 844.6 does not categorically immunize the County from a properly pleaded section 845.6 claim because section 845.6 is expressly identified as an exception to section 844.6's general prisoner-immunity provision. The Court likewise does not determine at this stage that sections 855.8 or 856 categorically bar any amended section 845.6 claim; application of those provisions depends upon the particular acts or omissions alleged.

Accordingly, the special demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**. Any amended pleading shall identify the particular Defendant or Defendants against whom the section 845.6 claim is asserted and allege facts showing, as to each, the claimed knowledge of a need for immediate medical care and the failure to take reasonable action to summon that care.

FOURTH CAUSE OF ACTION — TOM BANE CIVIL RIGHTS ACT

The Fourth Cause of Action is asserted by the Estate against all Defendants under Civil Code section 52.1.

The Bane Act provides a civil remedy where a person interferes, or attempts to interfere, by threat, intimidation, or coercion with the exercise or enjoyment of rights secured by federal or state law. (Civ. Code, § 52.1, subds. (b), (c).) A Bane Act claim requires more than negligence. Where the alleged coercive conduct is the constitutional violation itself, the plaintiff must plead facts supporting a specific intent to violate the protected right. (*Cornell v. City & County of San Francisco* (2017) 17 Cal.App.5th 766, 801–803.) Specific intent may be established by facts demonstrating reckless disregard of a clearly delineated and plainly applicable constitutional or statutory right. (Id. at p. 803.)

The Complaint alleges in conclusory terms that Defendants acted with “deliberate indifference” and with the “specific intent and purpose to deprive” Decedent of his rights. (Complaint, ¶¶ 69, 72.) Elsewhere, however, the Complaint alleges that Decedent’s need for emergency medical intervention “went unnoticed.” (Complaint, ¶ 40.) Although alternative theories may be pleaded, the present Complaint does not adequately identify which Defendant allegedly knew what, what conduct each Defendant intentionally undertook or failed to undertake, or the facts from which the requisite specific intent or reckless disregard of Decedent’s protected rights reasonably may be inferred. The collective use of “Defendants” is particularly problematic given the materially different roles of the correctional and medical personnel.

Defendants’ immunity argument, however, is overstated. Effective January 1, 2022, Civil Code section 52.1, subdivision (n), expressly provides that the immunities contained in Government Code sections 821.6, 844.6, and 845.6 do not apply to a Bane Act cause of action brought against a peace officer or custodial officer, or directly against the public entity employing such an officer. Thus, to the extent Defendant Kim Martinez qualifies as a custodial officer and the County is sued as her employing public entity, those specified immunity provisions do not categorically bar the Bane Act claim. (Civ. Code, § 52.1, subd. (n).) Subdivision (n), however, does not purport to abolish every statutory immunity applicable to every public employee, and the potential application of other immunity provisions to the medical personnel will depend upon the allegations of the amended pleading.

The demurrer is therefore not sustained on the theory that the Bane Act is categorically barred by governmental immunity. It is **SUSTAINED WITH LEAVE TO AMEND** because the Complaint does not presently allege sufficient defendant-specific facts supporting the requisite intentional interference with a protected right.

LEAVE TO AMEND

This is Plaintiffs’ first opportunity to amend following a ruling on demurrer. None of the identified pleading defects has been shown to be necessarily incapable of correction. Leave to amend is therefore **GRANTED**. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties’ attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

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MOTION TO STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendants County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher's Motion to Strike Portions of Plaintiffs' Complaint is **DENIED AS MOOT**.

Because the Court has sustained the demurrer with leave to amend as to each cause of action asserted against the moving Defendants, the operative pleading will be superseded by any amended complaint. The Motion to Strike directed to portions of the present Complaint is therefore **DENIED AS MOOT**, without prejudice to any appropriate challenge to an amended pleading.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.
